

		and then ‘ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.’ ” (<i>Ibid.</i>) This action was filed in October 2025. The parties engaged in streamlined AB 1755 initial disclosures and began to coordinate deposition dates. There was no motion practice and no depositions were taken. Counsel billed a total of 19.7 hours over the span of the litigation, and also requests fees for an additional 6.5 hours of anticipated time in connection with this motion. Tim Whelan is a partner with over 18 years of experience and seeks an hourly rate of \$600. Aliaksandra Vlitskaya is a partner with over 11 years of experience and seeks an hourly rate of \$550. Defendant objects to these hourly rates. Based on the Court’s experience with Song-Beverly actions and knowledge of the prevailing rates for similar cases in Orange County, the Court finds the rates to be high. The Court finds that hourly rates of \$500 per hour for attorney Whelan and \$400 for attorney Vlitskaya are appropriate in this case. As to the amount of time expended, the Court agrees with Defendant that the time requested in anticipation of reviewing the opposition, preparing a reply and attending the hearing on the fee motion is excessive. The Court finds that the amount of anticipated time for the reply and hearing should be reduced from 6.5 hours down to 3 hours of Vlitskaya’s time. The Court finds the remaining time for tasks to be reasonably incurred and recoverable. Defendant argues all prelitigation time before the Complaint was drafted and filed should be stricken as unrecoverable overhead. However, section 1794(d) expressly provides that a prevailing buyer may recover attorney’s fees that were reasonably incurred “in connection with the commencement and prosecution of such action.” The prelitigation time spent on intake of the case was incurred in connection with the commencement of this action and is therefore recoverable. As to costs, the only disputed item is electronic filing and service fees of \$103.48. Plaintiffs have submitted invoices in connection with their reply showing that the costs were actually incurred, and they appear reasonable. Accordingly, the Court will award the full \$648.48 in costs requested. The Court declines to award a lodestar multiplier, as the Court does not find that the case was particularly complicated or that it involved any novel questions of law. In light of the above, Plaintiffs’ Motion for Attorney Fees is GRANTED in the reduced amount of \$9,590 in fees (5.1 hrs at \$500/hr + 17.6 hrs at \$400/hr) and \$648.48 in costs, for a total award of \$10,238.48. Moving party to give notice.
11.	30-2024-01434147 Darling vs. SRPP III, LP	1. Motion for Leave to File Amended Complaint Plaintiffs Oriann Clair Darling and Lucas Budwig’s (“Plaintiffs”) Motion for Leave to File First Amended Complaint is GRANTED pursuant to Code of Civil Procedure sections 473 and 576. Pursuant to Code of Civil Procedure section 473, subdivision (a), the court may, “in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any

pleading or proceeding in other particulars....” (Code Civ. Proc., § 473, subd. (a).) Additionally, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading....” (Code Civ. Proc., § 576.)

“[T]he trial court has wide discretion in allowing the amendment of any pleading” (*Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 175) and such discretion “will usually be exercised liberally to permit amendment of the pleadings.” (*Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Ibid.*) Additionally, “[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564.)

Here, Plaintiffs seek leave to file a First Amended Complaint, which adds causes of action for breach of the implied warranty of habitability, bad faith retention of security deposit, and fraud/intentional misrepresentation, along with a prayer for punitive damages under Civil Code section 3294. (Darling Decl. ¶4, Exh. A.) Per Plaintiffs, “[t]he additional causes of action arise from the same core facts already alleged in the original Complaint and are included to more fully conform the pleadings to the evidence.” (Darling Decl. ¶ 6.) At the time the original complaint was filed, Plaintiffs were not aware of the significance of certain communications as constituting fraud; Plaintiffs have since discovered additional information, which has now led Plaintiffs to believe that misrepresentations and concealments in this case were not the result of mistake, but were part of a broader pattern and practice of intentional misrepresentation and concealment. (Darling Decl. ¶¶12-13.)

In opposition, Defendant first contends that Plaintiffs’ proposed fraud and punitive damage claims rest on a “pattern and practice” theory that Plaintiffs’ own exhibits disprove. Plaintiffs contend that the fraud claims are based, in part, on their discovery of other, related lawsuits against Defendant involving Defendant’s misconduct as a landlord. Defendant contends that it is not a party to *Rivera v. Sullivan Property Management, LLC, et al.* (OCSC Case No. 2023-01300434). However, the docket in that case reflects that Defendant was named as a party through a Doe Amendment. (See ROA 326, Darling Supp. Decl. ¶ 49, Exh. N.)

Further, Defendant contends that the allegations of the other lawsuits are simply unproven allegations. Defendant additionally contends that the proposed fraud allegations do not meet the heightened specificity requirement.

Ordinarily, the trial court will not consider the validity of the proposed amended pleading in deciding whether to grant leave to amend. Grounds for demurrer or motion to strike are premature. After leave to amend is granted, the opposing party will have the opportunity to attack the validity of the amended pleading. (*See Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048; *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 760 (“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”).)

Here, it is not abundantly clear that Plaintiffs will not be able to plead their proposed causes of action. Therefore, the better course of action in this case is to allow Defendant to test the pleadings by way of a demurrer or motion to strike.

Defendant further asserts that it will be substantially prejudiced because Plaintiff delayed in seeking leave to amend.

		First, part of that delay is attributable to Defendant’s refusal to stipulate to allowing Plaintiffs to amend. Plaintiffs contend that on April 13, 2026, they “requested that Defendants stipulate to the filing of a proposed first amended complaint to add the above-referenced causes of action and punitive damages.” (Darling Decl. ¶ 22.) However, Defendants declined the request. (<i>Id.</i>) Further, “[w]here no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (<i>Higgins v. Del Faro</i> (1981) 123 Cal.App.3d 558, 564.) Within the opposition brief, Defendant argues, essentially, that amendment will require it to expend additional time, effort and resources, responding to the new claims. (See, e.g., Oppn at 2:23-27); however, it is “unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend.” (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557; <i>see also Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 168, citing the same.) “Absent some kind of disadvantage to [Defendant’s] defense linked to the passage of time – such as faded memories or lost evidence – delay in and of itself was not a valid reason to deny amendment.” (<i>Jo Redland Trust, U.A.D. 4-6-05 v. CIT Bank, N.A.</i> (2023) 92 Cal.App.5th 142, 168.) Similarly, the Court in <i>Landis</i> noted that it was “unable to find any case in which denial was upheld where the sole basis on which the court relied was lack of diligence at a stage in the proceeding where pretrial or trial had not been set.” (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557.) As Defendant has not submitted any evidence that it will be prejudiced in such a manner as to justify denying the motion, the motion for leave to amend is granted. Plaintiffs’ requests for <u>judicial notice</u> are granted pursuant to Evidence Code §452(d). Plaintiffs <i>shall separately file and serve the proposed First Amended Complaint within 10 days.</i> Plaintiffs to give notice.
13.	30-2017-00960046 Wosoughkia vs. M3Live Bar & Grill, Inc	1. Motion for New Trial ***No Tentative Ruling.***
15.	30-2024-01422667 Nasr vs. Ride Aventon, Inc.	1. Motion for Summary Judgment and/or Adjudication Defendant Ride Aventon, Inc. seeks a motion for summary judgment as to Plaintiff’s Complaint (7 causes of action pled therein), or alternatively, summary adjudication as to <i>16 issues</i>. Based on applicable law, and as set forth herein, said Motion is DENIED. Notably, pursuant to CCP§437c(f)(1), “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative